

A.S.P Ice Factory v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 November 2019 · WRIT - C No. 38451 of 2019 · **Writ disposed; bill dispute relegated to clause 6.5.**

HEADNOTE

A writ seeking to quash disconnection and restore supply, where the consumer's grievance is the correctness of the bill, is not entertained because clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies the statutory remedy. The petition was disposed of with liberty to approach the appropriate authority within 10 days, a direction to decide by speaking order after hearing within 30 days, and a 40-day bar on coercive action.

FACTUAL SUMMARY

A.S.P Ice Factory, an LMV-6 consumer (MB No. 3020911, A/C 6412986223, recorded load 69.8 K.V.), filed this writ after the distribution licensee disconnected supply on 30 October 2019 against a demand of Rs. 8,86,096. The factory sought certiorari to quash that disconnection and mandamus restoring the connection. Counsel for the petitioner and the Electricity Department were heard. The factory's grievance was confined to the correctness of the bill that had led to disconnection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-alternate-remedy

HOLDING

A writ challenging disconnection that rests on a dispute as to correctness of the electricity bill will not be entertained when clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy. The consumer may approach the appropriate authority under clause 6.5; if the application is made within 10 days, that authority is to decide it by a speaking order after hearing, within 30 days of receiving a certified copy of the order. Coercive action was stayed for 40 days. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL OF RS. 8,86,096 AND LEGALITY OF THE 30.10.2019 DISCONNECTION

Writ not entertained on the merits; consumer relegated to clause 6.5. ¶ 1